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Real Estate OS

Document: Term Sheet **Prepared for:** Rodolphe Belin ("Rudi") — Principal Investor **Prepared by:** Zharkyn Ryspayev ("Zhan") — Founder, CEO/CTO · Dmytro Tsvyk ("Dymo") — Co-founder, Operations Principal **Date:** 2026-04-18 **Meeting:** Sunday 2026-04-19, Al Jurf **Instrument:** Post-Money SAFE (Y Combinator 2018 standard, adapted to UAE / ADGM law) **Status:** DRAFT — subject to UAE legal counsel review

Contents

Framing

Orientation

- 1. Parties**
- 2. Investment Amount**
- 3. Equity at Conversion**
- 4. Sunset Clause**
- 5. Profit Distribution (Agency, per quarter)**
- 6. Liquidation Preference**
- 7. Anti-Dilution**
- 8. Most Favoured Nation (MFN)**
- 9. Governance — Board Composition**
- 10. Reserved Matters**
- 11. Dividend Policy (codified in SHA)**
- 12. Information Rights**
- 13. Transfer Restrictions, Tag-Along, ROFR**
- 14. Founder Vesting**
- 15. Founder Salary and Severance**
- 16. IP Assignment**
- 17. Non-Compete and Non-Solicit**
- 18. Representations and Warranties**
- 19. Governing Law and Dispute Resolution**
- 20. Tax Treatment**
- 21. Conditions Precedent to SAFE Execution**
- 22. Conditions Precedent to Shareholders Agreement Execution**
- 23. Non-Binding Status**

Defined Terms

Summary of Rudi's Deal

Framing

The terms below implement a **majority-investor / sunset-to-founders** structure. Rudi acquires **80 % of the Agency** (Dubai Mainland LLC) and **10 % of the Platform** (ADGM HoldCo) for an AED 1,000,000 commitment. His Agency majority converts to a 10 % minority automatically on the earlier of (a) AED 2,000,000 cumulative distributions received or (b) 5 years since SAFE execution.

Rudi's downside is protected by: 80 % Agency control pre-Sunset, 1× non-participating liquidation preference, 10 % Platform lifetime, 12-month MFN. Founders' upside is protected by: majority-by-role (Zhan on Platform, Dymo on Agency Operations), post-Sunset Agency control (45 % each), and standard 2-year / 6-month-cliff vesting on their founder equity. The package is intentionally simple — no full-ratchet anti-dilution, no redemption beyond Sunset, no super pro-rata, no tag-along / drag-along enumeration at Term Sheet level (deferred to SHA drafting by UAE counsel).

Orientation

This Term Sheet sets out the indicative commercial terms for Rudi's **AED 1,000,000** investment. Each clause is presented in three layers:

- **Legal language** — the clause as expected to appear in the Post-Money SAFE and Shareholders Agreement, subject to counsel drafting. [Exact contractual language subject to counsel review.]
- **Plain English** — what the clause means in practice.
- **Rationale** — why the clause is structured this way.

No term is binding until the Post-Money SAFE is executed. The MOU signed Sunday 2026-04-19 ([MOU_RUDI.md](#)) confirms the Parties' intent to execute the SAFE shortly after entity formation, subject to UAE counsel review.

1. Parties

Legal language.

The Company: ZAAHI Agency (to be incorporated as a Dubai Mainland LLC) and, upon the closing of the first agency deal, ZAAHI Platform (to be incorporated as an ADGM Limited company) (together the "Company"). The Founders: **Zharkyn Ryspayev** (hereinafter "Zhan") and **Dmytro Tsvyk** (hereinafter "Dymo"). The Investor: **Rodolphe Belin** (hereinafter "Rudi"), Partner at Equilibrium Advisory Group, acting in his personal capacity unless he notifies the Company in writing of an alternative investment vehicle prior to SAFE execution.

Plain English. Two entities: Agency (Dubai Mainland LLC, formation documents submitted Monday 2026-04-21; LLC registration 2-4 weeks thereafter) and Platform (ADGM Limited, forms on first agency deal closure). Founders are Zhan and Dymo. Rudi is the Investor.

Rationale. Dual-entity structure separates regulated brokerage (must be Dubai Mainland LLC for RERA) from platform IP and investor upside (ADGM for English common law and institutional investor comfort).

2. Investment Amount

Legal language.

The Investor shall invest AED 1,000,000 (one million United Arab Emirates dirhams) (the "Purchase Amount") in a single tranche, payable by wire transfer on the Closing Date to an account held by "ZAAHI Holding (in formation)" — a temporary escrow account pending the Agency LLC bank account opening, or directly to the Agency LLC bank account if open at time of closing.

Plain English. Rudi wires AED 1,000,000 once, at closing, to an agreed holding account.

Rationale. Single tranche — no staged drawdowns. Temporary holding bridges the entity-formation window.

3. Equity at Conversion

Legal language.

On conversion, the Company shall issue to the Investor such number of Preferred Shares as represents: (a) **80.0 % of the fully-diluted equity of the Agency** (Dubai Mainland LLC); and (b) **10.0 % of the fully-diluted equity of the Platform** (ADGM Limited), upon Platform formation.

Plain English. Rudi's AED 1 M buys 80 % of the Agency and 10 % of the Platform. Platform issuance happens at Platform formation (triggered by the first agency deal).

Rationale. The 80 % Agency reflects Rudi's sole-capital-risk position. The 10 % Platform grant is a package term reflecting that the Platform is funded from Agency cash flow (70 % of every Agency profit) — Rudi participates in the Platform outcome without separately paying for Platform equity.

Agency post-money valuation implied: **AED 1,250,000** (AED 1 M / 80 %). Platform valuation at formation is not a separately-priced transaction — the 10 % is granted as part of this deal.

4. Sunset Clause

Legal language.

The Agency equity cap table shall automatically rebalance from (Rudi 80 %, Dymo 10 %, Zhan 10 %) to (Rudi 10 %, Dymo 45 %, Zhan 45 %) upon the earlier of:

- (a) the date on which cumulative cash distributions paid by both the Agency and the Platform to the Investor since the Closing Date reach AED 2,000,000 (the "**Financial Trigger**"); or
- (b) the fifth anniversary of the Closing Date (the "**Time Trigger**").

Cumulative cash distributions shall include: agency profit distributions (10 % share), platform dividends (if declared), and any buyback or redemption payments. Cumulative cash distributions shall exclude: paper valuation of shares, unrealised gains. The rebalance shall execute on the business day following the trigger event, without further Board or shareholder resolution.

The Platform cap table, the profit-distribution ratio set out in §5, and the Investor's 10 % Platform equity shall be **unchanged** by the Sunset event.

Plain English. When Rudi has received either AED 2 M cumulatively (from both entities combined) OR 5 years have passed since SAFE execution — whichever happens first — his 80 % Agency position automatically converts to 10 %. The 70

percentage points released split equally: +35 to Dymo and +35 to Zhan. The Platform cap table and the profit split stay the same. Rudi keeps receiving 10 % of Agency profits and 10 % of Platform upside for life.

Rationale. This is the core of the deal. Rudi gets majority control during payback, guaranteed cash-return path (2× at minimum exit + 10 % perpetual + Platform upside), and a hard time cap (5 years) so control return is certain. Founders get back operational majority of Agency without owing Rudi additional value — the 2× return is his exit mechanism.

5. Profit Distribution (Agency, per quarter)

Legal language.

For each calendar quarter of the Agency, net profit (Distributable Net Profit as defined in the Shareholders Agreement Dividend Policy) shall be distributed in the following fixed ratio, applicable pre- and post-Sunset identically:

- 70 % to the Platform Development Fund (ADGM HoldCo)
- 10 % to the Investor (Rudi)
- 10 % to Dymo
- 10 % to Zhan

Distribution is declared quarterly by the Board following the Dividend Policy cadence. Detail is set out in [PROFIT_DISTRIBUTION_MECHANICS.md](#).

Plain English. After costs, taxes, and reserves, Agency profit is split 70 to Platform, 10 each to Rudi, Dymo, and Zhan. Every quarter. This ratio is fixed in the SHA and continues unchanged post-Sunset — Platform keeps receiving 70 % forever, and Rudi keeps receiving 10 % of Agency profits forever.

Rationale. This is the platform-financing mechanism. Rudi as 80 % Agency owner contractually commits 70 pp of his economic interest to Platform development. The fixed ratio is structural — not discretionary — and does not change on Sunset because the purpose (Platform funding) does not change.

6. Liquidation Preference

Legal language.

In the event of a Liquidity Event or Dissolution Event affecting either entity, the Investor shall be entitled to receive, in priority to the holders of Common Shares, an amount equal to **1.0× the Purchase Amount** (i.e., AED 1,000,000), plus any declared but unpaid dividends, being a **non-participating** liquidation preference.

The Investor shall elect between (a) receiving the 1× non-participating liquidation preference, or (b) converting to Common Shares and receiving the pro-rata distribution, whichever yields the higher return — not both.

Plain English. On sale, IPO, or wind-up of either entity, Rudi receives the greater of: (a) his AED 1 M back, or (b) his pro-rata share of proceeds. This protects downside in a low-value exit.

Rationale. Industry-standard 1× non-participating is simple, fair, and aligned with Rudi's majority-investor position. No participating preference (which would give Rudi both 1× and pro-rata — overcompensating given his 80 % Agency stake already).

7. Anti-Dilution

Legal language.

No contractual anti-dilution protection applies. The Investor's economic interests are preserved pre-Sunset by the Investor's 80 % Agency majority (which controls shareholder votes on future issuances) and post-Sunset by the Investor's Platform 10 % equity (subject to standard UAE company-law shareholder pre-emption rights on new issuances unless waived).

Plain English. No full-ratchet or weighted-average anti-dilution clause. Rudi's 80 % majority in Agency pre-Sunset means he controls whether the company issues new Agency shares. Post-Sunset, his 10 % minority is treated like any other minority shareholder — standard pre-emption rights only.

Rationale. Full-ratchet anti-dilution was designed for minority VC investors needing protection against later down-rounds. Rudi is a majority investor pre-Sunset (controls issuance directly) and a defined-percentage minority post-Sunset (his 10 % post-Sunset is by design, not dilution). No anti-dilution clause is needed — it would be either redundant or structurally misaligned.

8. Most Favoured Nation (MFN)

Legal language.

For a period of twelve (12) months from the Closing Date, if the Company issues any equity, SAFE, convertible note, or other security on terms more favourable to the purchaser than the terms granted to the Investor hereunder (including without limitation lower valuation cap, higher liquidation preference multiple, more favourable economic protection, or broader information rights), the Investor shall automatically be entitled to amend this SAFE (and, post-conversion, the Investor's Preferred Share rights) to incorporate such more favourable terms at no additional consideration.

Plain English. If ZAAHI raises from another investor on better economic terms within 12 months after Rudi's Closing, Rudi automatically gets those better terms too.

Rationale. Standard MFN. 12-month window is reasonable for a majority-investor position; reduces Rudi's concern that a later minority investor gets preferential treatment.

9. Governance — Board Composition

Legal language.

The Board of Directors of each of the Agency and the Platform shall comprise three (3) directors: Zhan, Dymo, and Rudi. The quorum for any Board meeting shall be two directors present in person, by video conference, or by written consent. All ordinary Board decisions shall be by simple majority (2 of 3). Reserved matters (see §10) shall require shareholder approval. No director shall have a veto, casting vote, or blocking right at Board level.

Plain English. Three directors — Zhan, Dymo, Rudi. Two-thirds majority on any Board decision. Reserved matters go to shareholder vote (where Rudi's 80 % Agency controls pre-Sunset, and Zhan's 80 % Platform controls at all times).

Rationale. Three-seat board with Rudi as the third seat gives transparency and voice without operational paralysis. Shareholder-level votes on reserved matters follow capital ownership — pre-Sunset Rudi is majority Agency, post-Sunset Dymo + Zhan combine to 90 %.

10. Reserved Matters

Legal language.

The following matters shall require shareholder approval (by simple majority of votes cast) for each entity separately: (a) any amendment to the Shareholders Agreement or the Articles of Association that adversely affects a Shareholder; (b) any voluntary dissolution, liquidation, or winding-up of the Company; (c) any sale of all or substantially all of the Company's assets, or any merger, consolidation, or change of control transaction. No other matter, including ordinary-course operational decisions, financing, hiring, compensation, product scope, or capital expenditure, shall require shareholder approval beyond Board majority.

Plain English. Three things go to shareholder vote: SHA/AoA amendment, wind-up, and sale. Everything else is Board majority (2 of 3). Pre-Sunset on Agency reserved matters, Rudi (80 %) controls. Post-Sunset, Dymo + Zhan (90 %) control. On Platform reserved matters, Zhan (80 %) controls at all times.

Rationale. Minimum set of matters where shareholder approval is practically required under UAE law. All other matters are Board-level to preserve operational speed.

11. Dividend Policy (codified in SHA)

Legal language.

The Company shall adopt and maintain a Dividend Policy as set out in Schedule [X] of the Shareholders Agreement. The Dividend Policy shall provide: (a) quarterly declaration of Distributable Net Profit after corporate tax, operating expenses, a reasonable cash reserve (3 months of OpEx), and mandatory statutory reserves; (b) distribution of Distributable Net Profit in the ratio 70 / 10 / 10 / 10 — 70 % to Platform Development Fund, 10 % each to Rudi, Dymo, Zhan; (c) Board approval of each quarterly declaration; (d) the ratio is fixed and continues pre- and post-Sunset. Full mechanics in

`PROFIT_DISTRIBUTION_MECHANICS.md`.

Plain English. Every quarter, after costs and taxes and a 3-month operating-cash buffer, 70 % of net profit goes to the Platform, 10 % each to Rudi, Dymo, Zhan.

Rationale. Option B (Dividend Policy in SHA) — transparent, auditable, and legally enforceable.

12. Information Rights

Legal language.

The Company shall provide the Investor with:

- (a) a **monthly** written management summary within fifteen (15) days of each month end, covering deals in pipeline, deals closed, gross commission revenue, cash position, and agreed KPIs;
- (b) **quarterly** unaudited management accounts within forty-five (45) days of each quarter end, including P&L, balance sheet, cash flow, and written commentary;
- (c) **annual** audited financial statements within ninety (90) days of each financial year end;
- (d) **immediate** notification within forty-eight (48) hours of any Material Event, being: any litigation or regulatory action involving the Company in excess of AED 100,000 in dispute value; any financing transaction in excess of AED 500,000; the receipt of any acquisition or strategic-partnership offer; the resignation or termination of either Founder; any material breach of any material contract; any data breach or regulatory penalty; any loss of a material licence or permit.

Plain English. Rudi receives a one-page monthly summary; full quarterly financials; annual audited statements; 48-hour notice of anything material.

Rationale. Four-layer information package appropriate for a majority investor. Standard at this scale.

13. Transfer Restrictions, Tag-Along, ROFR

Legal language.

The Parties shall include in the Shareholders Agreement customary transfer restrictions, Company-level and Shareholder-level Rights of First Refusal, and Tag-Along provisions, exact language to be drafted by UAE counsel. The intent is: (a) a 2-year lock from Closing on Investor transfers except permitted transfers (to wholly-owned entities, family-estate planning, or with consent); (b) 30-day ROFR for the Company and then the other Shareholders pro-rata on any proposed transfer; (c) Tag-Along rights for Founders on Investor transfers; (d) Rudi is not subject to drag-along.

Plain English. Standard transfer mechanics — lock, ROFR, Tag-Along — but exact language left to counsel. Rudi is not forced to sell if founders find a buyer for the whole company.

Rationale. These mechanics are standard and deeper language is counsel's job at SHA drafting, not Term Sheet's.

14. Founder Vesting

Legal language.

Zhan and Dymo shall subject their existing and future shares in each entity to reverse vesting over two (2) years from the Effective Date, with a six (6)-month cliff. Upon involuntary termination without Cause (as defined in the SHA), twenty-five per cent (25 %) of then-unvested shares shall accelerate. Upon a change of control combined with termination (the "double-trigger"), 100 % of unvested shares shall accelerate. The Investor's shares shall be fully vested immediately on Closing.

Plain English. Zhan and Dymo each have a 2-year vesting clock with a 6-month cliff. If either leaves in the first 6 months, they lose all unvested equity. After 6 months, equity vests monthly to full vesting at 24 months. Rudi's equity is fully vested from day one.

Rationale. Shorter vesting schedule (2 years vs the more common 4 years) reflects the shorter-time-horizon nature of this deal — the Sunset fires at Year 5 latest, so a 4-year vesting would overlap too heavily with the sunset event. 2-year vesting with 6-month cliff balances founder commitment with the deal structure.

15. Founder Salary and Severance

Legal language.

The Company shall, in the Shareholders Agreement, codify the founder protection packages for Zhan (per `ZHAN_PROTECTIONS.md`) and Dymo (per `DYMO_PROTECTIONS.md`), each comprising:

- (a) a Founder / Co-founder Salary Floor of AED 30,000–50,000 per month, paid monthly from the respective entity's operating account (Zhan from Platform; Dymo from Agency), pro-rated for partial months;
- (b) six (6) months' severance (lump sum or continuation, at the founder's election) on involuntary termination without Cause; and
- (c) Tag-Along rights and Right of First Refusal on Investor share transfers.

Plain English. Each founder gets a guaranteed monthly salary from the entity they lead, 6 months' severance if terminated without cause, and matching rights on Rudi transfers. No performance-bonus equity — founders' upside is through base equity, post-Sunset Agency uplift (for Dymo and Zhan), and Platform majority (for Zhan).

Rationale. Simplified package. No Performance Bonus Shares in this deal structure — the Sunset Clause is Dymo's and Zhan's Agency-upside mechanism, and Zhan's 80 % Platform is his long-term reward.

16. IP Assignment

Legal language.

Zhan shall, on or before the Effective Date of the Shareholders Agreement, irrevocably assign to the Platform (ADGM HoldCo) at no additional consideration all pre-existing intellectual property relating to ZAAHI, including: the software codebase of `zaahi.io`; the Master Tree v3 document; the ZAAHI brand, wordmark, and 3D ZAAHI Signature; the parcels database (114 verified parcels); the PMTiles coverage (556 000 plots across Dubai, Abu Dhabi, and Oman); the Ambassador program architecture; the Archibald AI integration; the domain `zaahi.io` and related domains and social handles. Zhan represents and warrants that he owns all such IP free of encumbrance.

Plain English. Zhan transfers all ZAAHI-related IP to the Platform company for no extra money. Non-negotiable — without this, the Platform has no actual business.

Rationale. Universal condition precedent in any venture investment where founders built product before incorporation.

17. Non-Compete and Non-Solicit

Legal language.

During the term of their engagement with the Company and for a period of twelve (12) months thereafter, Zhan and Dymo shall not: (a) directly or indirectly engage in, or hold any beneficial interest exceeding five per cent (5.0 %) in, any business that competes with ZAAHI in UAE real estate platforms or brokerage; or (b) solicit any Company employee, agent, customer, or supplier. Dymo's existing real estate advisory and agency relationships outside ZAAHI shall be scheduled and excluded from this restriction.

Plain English. Founders can't go start a competing real estate platform or poach ZAAHI people while at ZAAHI or for 12 months after.

Rationale. Standard founder non-compete.

18. Representations and Warranties

Legal language.

The Founders represent and warrant to the Investor as of the Closing Date that: (a) they own the pre-existing IP described in §16 free of encumbrance; (b) neither of them is party to any litigation or dispute that would materially affect the Company; (c) all information provided to the Investor in connection with this investment is accurate in all material respects; (d) they have the corporate power and authority to enter into this SAFE; (e) the Company is not in breach of any material contract or regulation.

Plain English. Founders formally warrant that what they've told Rudi is accurate.

Rationale. Standard.

19. Governing Law and Dispute Resolution

Legal language.

This SAFE and the Shareholders Agreement shall be governed by the laws of Abu Dhabi Global Market (applying English common law principles). Disputes shall be finally resolved by arbitration under the rules of the ADGM Arbitration Centre, with Abu Dhabi as the seat of arbitration, the English language, and a tribunal of three arbitrators appointed in accordance with those rules. The Parties hereby submit to the exclusive jurisdiction of the ADGM courts for matters outside the scope of arbitration.

Plain English. ADGM arbitration under English common law. The gold standard for UAE venture structuring.

Rationale. Enforceable, internationally recognised, specialised tribunals.

20. Tax Treatment

Legal language.

The tax treatment of this SAFE, the conversion to Preferred Shares, any subsequent distributions, and the inter-company flows between the Agency and the Platform shall be confirmed by UAE tax counsel before the Closing Date. The Parties acknowledge the applicability of UAE Federal Decree-Law 47/2022 (Corporate Tax), Federal Decree-Law 8/2017 (VAT), and any ADGM-specific tax treatment. The Parties shall cooperate in good faith to implement the investment in the most tax-efficient structure consistent with the commercial intent.

Plain English. Tax structuring confirmed by counsel before signing. Parties cooperate to minimise tax while keeping economic intent intact.

Rationale. UAE CT introduced 2023 (9 % above AED 375,000; SBR for small businesses; QFZP for qualifying free zone entities). Counsel review is a condition precedent.

21. Conditions Precedent to SAFE Execution

- Satisfactory due diligence by the Investor and his advisers.
- UAE legal counsel review of this Term Sheet, the SAFE document, and the draft Shareholders Agreement principles.
- UAE tax counsel review per §20.
- Delivery by Zhan of evidence of pre-existing IP ownership per §16.

- Agreement of the final Agency post-money valuation (indicatively AED 1,250,000) and Platform equity grant structure.
 - No material adverse change in the ZAAHI business.
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22. Conditions Precedent to Shareholders Agreement Execution

- Dubai Mainland LLC (Agency) incorporated and RERA company broker licence application in progress.
 - Corporate bank account opened.
 - Initial counsel-drafted Shareholders Agreement delivered and agreed by all Parties.
 - Applicable Shareholder Agreement schedules populated: founder-protection addenda (`ZHAN_PROTECTIONS.md` , `DYMO_PROTECTIONS.md`); Dividend Policy detailed mechanics; Sunset ledger mechanics.
 - UBO filings prepared for submission post-execution.
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23. Non-Binding Status

Except for the binding Exclusivity and Confidentiality provisions set out in the Memorandum of Understanding dated Sunday 19 April 2026, this Term Sheet is non-binding. Each Party may withdraw prior to execution of the Post-Money SAFE, provided each Party negotiates in good faith.

Defined Terms

- **Agency.** ZAAHI Agency, a Dubai Mainland LLC (formation documents submitted Monday 2026-04-21).
- **Platform.** ZAAHI Platform, an ADGM Limited company (incorporation triggered by closing of the first agency deal).
- **Company.** Together, the Agency and the Platform; or the relevant one as context requires.
- **Closing Date.** The date on which the Post-Money SAFE is executed and Rudi's AED 1,000,000 is wired.
- **Effective Date.** The date on which the Shareholders Agreement is executed.
- **Purchase Amount.** AED 1,000,000.

- **Investor Shares.** The Preferred Shares issued to Rudi on SAFE conversion: 80 % of Agency and 10 % of Platform at Platform formation.
 - **Founders.** Zhan (Zharkyn Ryspayev) and Dymo (Dmytro Tsvyk), collectively.
 - **Sunset / Sunset Trigger.** The automatic Agency cap-table rebalance per §4.
 - **Financial Trigger.** AED 2,000,000 cumulative cash distributions to Rudi.
 - **Time Trigger.** Fifth anniversary of the Closing Date.
 - **Distributable Net Profit.** Agency quarterly net profit after costs, OpEx, tax, statutory reserve, and 3-month operating reserve, per `PROFIT_DISTRIBUTION_MECHANICS.md` §2.1.
 - **Liquidity Event.** An IPO, change of control, sale of substantially all assets, or similar transaction.
 - **Dissolution Event.** Voluntary or involuntary winding-up of the Company.
 - **Material Event.** As defined in §12(d).
 - **Cause.** Material breach of a Founder's employment or director duties, conviction of a serious offence, or other grounds defined in the Shareholders Agreement.
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Summary of Rudi's Deal

Element	Term	Clause
Investment	AED 1,000,000 one-time	\$2
Equity — Agency (pre-Sunset)	80.0 %	\$3
Equity — Agency (post-Sunset)	10.0 %	\$4
Equity — Platform (lifetime)	10.0 %	\$3
Sunset trigger (earlier of)	AED 2,000,000 cumulative distributions OR 5 years	\$4
Profit distribution (quarterly, pre- and post-Sunset)	70 % Platform / 10 % Rudi / 10 % Dymo / 10 % Zhan	\$5 / \$11
Liquidation preference	1× non-participating	\$6
Anti-dilution	None	\$7
MFN	12 months	\$8
Board seat	1 of 3 (Zhan, Dymo, Rudi)	\$9
Reserved matters	SHA amendment, dissolution, sale	\$10
Information rights	Monthly + quarterly + annual + 48 h material events	\$12
Founder vesting (Zhan, Dymo)	2 years / 6-month cliff	\$14
Founder salary	AED 30,000 – 50,000 / month from respective entity	\$15
IP assignment	To Platform at nil consideration	\$16
Non-compete	12-month post-departure	\$17
Dispute resolution	ADGM arbitration	\$19

End of Term Sheet. To be executed shortly after Agency LLC formation, following UAE legal counsel review.